

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

JUSTICE MUHAMMAD HASHIM KHAN KAKAR
JUSTICE SALAHUDDIN PANHWAR
JUSTICE ISHTIAQ IBRAHIM

Criminal Appeal No.457 of 2024

*(On appeal against the judgment dated 29.11.2017,
passed by the Lahore High Court, Multan Bench Multan
in Criminal Appeal No.532 of 2015 and Criminal Revision
No.368 of 2015)*

Naeem Arshad alias Papu

...Petitioner (s)

Versus

The State

...Respondent(s)

For the Petitioner(s): Malik M. Noman Khalid, ASC assisted by
Ms. Itrat Kainat Tatari, AHC.

For the State: Mr. Tariq Siddique, Addl. P.G. Punjab

Date of hearing: 08.01.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- On 14.03.2011 complainant Kashif Jameel along with his companions, namely, Sarwar and Amir Aziz (*given up*), was allegedly present at the cloth shop of his uncle Muhammad Anwar, situated at Sahiwal 90/6.R, in connection with some personal work. At about 7:20 p.m., the appellant, Naeem Arshad alias Papu, accompanied by two unknown persons, arrived at the shop on a motorcycle and allegedly fired at Muhammad Anwar, as a result, he got hit near his umbilicus. Upon the hue and cry raised by the complainant and his companions, the appellant and his accomplices fled from the scene. The complainant and his companions shifted the injured Muhammad Anwar to DHQ Hospital, Sahiwal, with the assistance of Rescue-1122, where he succumbed to injury. On the complaint/statement of the complainant (Exh.PA), FIR No.154/11 dated 14.03.2011 (Exh. PA/1) was registered at Police Station Fareed Town, Sahiwal.

2. During the course of investigation, the Investigating Officer opined that the appellant, Naeem Arshad alias Papu, had not fired the fatal shot

and that the deceased had instead been murdered by one Shehbaz Ali with firearm. Dissatisfied with the investigation, the complainant filed a private complaint under sections 302, 109, and 34 of the Pakistan Penal Code, 1860 (**'PPC'**) before the learned Additional Sessions Judge, Sahiwal. In the complaint, it was alleged by the complainant that the appellant Naeem Arshad alias Papu had purchased cloth from the deceased on credit and an amount of Rs.2,500/- was outstanding against the appellant; that two days prior to the occurrence, a quarrel took place between the appellant and the deceased when the latter demanded payment of the outstanding amount. Due to this grudge, the appellant, in furtherance of a common intention with co-accused Shehbaz Ali and Shabbir Masih, committed the murder of the deceased. The complainant also alleged that co-accused Ijaz, a friend of the appellant, provided information regarding the movement of the deceased and facilitated the commission of the offence. It was further stated that after the registration of the FIR, the complainant came to know that co-accused Ijaz was present at some distance from the place of occurrence at the time of incident.

3. After facing a full-dressed trial, the Trial Court, vide judgment dated 30.07.2015, convicted the appellant under section 302(b) PPC and sentenced him to undergo twenty-five years' imprisonment, along with payment of Rs. 100,000/- as compensation to the legal heirs of the deceased under section 544-A of the Code of Criminal Procedure, 1898 (**'the Code'**). In default of payment of compensation, the appellant was further sentenced to undergo six months' simple imprisonment. Through the same judgment, the Trial Court acquitted the co-accused, namely Shahbaz Ali, Shabbir Masih, and Ijaz.

4. Criminal Appeal No. 532 of 2015, filed by the appellant-convict challenging his conviction and sentence, was dismissed by the Lahore High Court, Multan Bench, Multan (**'the High Court'**) vide judgment dated 29.11.2017 (**'the impugned judgment'**). Likewise, the criminal revision petition filed by the complainant, Kashif Jameel, seeking enhancement of the convict's sentence, was also dismissed through the same judgment. No appeal was filed either by the complainant or by the State against the acquittal of the co-accused before the High Court.

5. The appellant-convict questioned his conviction and sentence recorded by the High Court through the impugned judgment by filing Jail Petition No.2 of 2018 before this Court. Leave to appeal was granted vide

order dated 03.12.2024 to reappraise the entire evidence in light of the contentions raised by the learned counsel for the appellant-convict.

6. We have heard the arguments of learned counsel for the appellant-convict as well as the learned Additional Prosecutor General, Punja, appearing on behalf of the State and perused the record, evidence and the judgments of the courts below with their able assistance.

7. Upon a careful appraisal and evaluation of the material available on record, it is observed that the complainant Kashif Jameel (PW-1), in his initial report/FIR and the private complaint as well as in his statement recorded before the Court, has consistently attributed the role of making a single fire shot at the deceased exclusively to the appellant-convict Naeem Arshad alias Papu. No role of firing has been assigned by him to any of the acquitted co-accused. Similarly, he has also alleged motive behind the occurrence in the form of a quarrel that allegedly took place between the deceased and the appellant over an outstanding amount of Rs. 2,500/- approximately two days prior to the incident, specifically against the appellant-convict. It is, however, evident from the record that on conclusion of investigation the Investigating Officer, opined that the fire shot at the deceased was not fired by the appellant, rather it was acquitted co-accused Shahbaz Ali who fired the effective fire shot at the deceased. Co-accused Shahbaz, upon his arrest, was subjected to an identification parade wherein he was duly identified by the witnesses, and a pistol was also shown to have been allegedly recovered on his pointation. According to the report of the Punjab Forensic Science Agency (PFSA), the crime empty recovered from the place of occurrence was fired from the pistol allegedly recovered on the pointation of co-accused Shahbaz Ali, but the said co-accused has been acquitted by the Trial Court and rightly so because there was no allegation of firing against him. Complainant Muhammad Jamil (PW.1) is resident of Chak No.89/6-R District Sahiwal whereas the occurrence took place in Chak No.90/6R. The complainant has not furnished any plausible explanation about purpose of his presence with the deceased at the time of occurrence. The complainant has not established his presence at the spot at the relevant time through some strong independent and convincing evidence. The other two eye-witnesses, namely Sarwar and Aamir Aziz were the residents of the same Chak in which the occurrence took place; however, they have been abandoned by the prosecution/complainant for no good reason. In such circumstances, an adverse inference within the contemplation of Article 129(g) of the

Qanun-e-Shahadat Order, 1984 is to be drawn against the prosecution to the effect that had these witnesses been produced, they would not have supported the prosecution case. It is also pertinent to note that co-accused Shahbaz Ali has already been acquitted by the Trial Court, and since then till date neither the complainant nor the State assailed has questioned his acquittal before the appellate forum, therefore, his acquittal has attained finality.

8. In view of the foregoing discussion, we are persuaded to hold that the presence of the complainant at the place of occurrence at the relevant time is highly doubtful, and that the incident did not take place in the manner alleged by him; rather, it appears to have occurred in some other manner which has remained shrouded in mystery. There is yet another aspect of the case which further dents the prosecution version. The time of occurrence has been stated in the FIR as 7:30 p.m., whereas, according to the official calendar, the time of sunset on the date of the occurrence was 6:35 p.m., thereby indicating that complete darkness had set in at the time of the incident. The complainant has neither stated in the FIR nor in his statement before the Court the source of light with the aid of which he allegedly identified the appellant at the spot. This omission, by itself, is sufficient to create serious doubt about the truthfulness of the prosecution case. The learned Courts below, without adverting to the aforementioned material infirmities, arrived at an erroneous conclusion in holding the appellant guilty of the charged offence.

9. Accordingly, this appeal is allowed. The conviction and sentence of the appellant recorded by the courts below are set aside and he is acquitted of the charge. He shall be released forthwith if not required to be detained in any other case.

Judge

Judge

Judge

Islamabad the
8th January, 2026
Not Approved for reporting.
M.Siraj Afridi PS

